



CHAPTER liv.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to Belfast (Rural) Ennistymon (Rural) and Londonderry and the Rathdrum and Wicklow Joint Burial Board District. A.D. 1903.

[30th June 1903.]

WHEREAS the Local Government Board for Ireland (hereinafter referred to as “the Local Government Board”) have made the Provisional Orders set forth in the schedule hereto under the Public Health (Ireland) Acts 1878 to 1896 :

41 & 42 Vict. c. 52.
42 & 43 Vict. c. 57.
47 & 48 Vict. c. 77.
52 & 53 Vict. c. 64.
53 & 54 Vict. c. 59.
59 & 60 Vict. c. 54.

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to one of such Orders :

Be it therefore enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. The Corporation mentioned in the Order relating to the county borough of Londonderry hereby confirmed shall not under the powers of that Order purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or will be subsequently so occupied. Restriction of power to take houses of labouring class.

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Provisional Orders Confirmation (No. 4) Act, 1903.

A.D. 1903. The expression “labouring class” means mechanics artizans
— labourers and others working for wages hawkers costermongers
persons not working for wages but working at some trade or
handicraft without employing others except members of their own
families and persons other than domestic servants whose income
does not exceed an average of thirty shillings a week and the
families of any of such persons who may be residing with them.

Short title. **3.** This Act may be cited as the Local Government Board
(Ireland) Provisional Orders Confirmation (No. 4) Act 1903.

SCHEDULE.

A.D. 1903.

RURAL DISTRICT OF BELFAST.

CARNMONEY BURIAL GROUND.

*Provisional Order to enable the Council of the Rural District of
Belfast to put in force the Compulsory Clauses of the Lands
Clauses Acts.* *Belfast.*

WHEREAS the council of the rural district of Belfast (in this Order referred to as "the district council") being the burial board of the district require to purchase and take the lands described in the schedule hereto for the purpose of providing a burial ground for their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The district council acting as the burial board of the district shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Antrim in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

3. This Order may be cited as the Carnmoney Burial Ground Order 1903.

[Ch. liv.] *Local Government Board (Ireland)* [3 EDW. 7.]
Provisional Orders Confirmation (No. 4) Act, 1903.

A.D. 1903.

Belfast.

S C H E D U L E.

Parish of CARMONEY in the County of ANTRIM.

No. on Plan.	Description of Lands.	Owners or reputed Owners.	Occupier.
1	Part of field containing 5a. in the townland of Dunaney.	Earl of Shaftesbury Col. Edward Grey Selby Smyth.	John Smith.

Given under our seal of office this second day of April in the year of our Lord one thousand nine hundred and three.

(L.S.)

H. A. ROBINSON.

RURAL DISTRICT OF ENNISTYMON.

Ennistymon. Provisional Order to enable the Council of the Rural District of Ennistymon to put in force the Compulsory Clauses of the Lands Clauses Acts.

WHEREAS the council of the rural district of Ennistymon (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the First Schedule hereto for the purpose of providing an additional supply of water for the towns of Ennistymon and Lahinch in their district and the lands and premises described in the Second Schedule hereto for the purpose of providing a system of sewerage for the said town of Lahinch :

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedules hereto and for the purposes aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the schedules hereto.

[3 EDW. 7.] *Local Government Board (Ireland)* [Ch. liv.]
Provisional Orders Confirmation (No. 4) Act, 1903.

3. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Clare in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

A.D. 1903.
Ennistymon.

61 & 62 Vict.
c. 37.

4. This Order may be cited as the Ennistymon Order 1903.

FIRST SCHEDULE.

Parish of KILFENORA in the County of CLARE.

Nos. on Plan.	Description of Land &c.	Owner or reputed Owner.	Occupier.
1 and 2	Part of the townland of Cloonomra Land and water containing 3a.	Lord Inchiquin - -	John Moloney.

SECOND SCHEDULE.

Parish of KILMACREHY in the County of CLARE.

No. on Plan.	Description of Land &c.	Owners or reputed Owners.	Occupier.
1	Part of the townland of Dough Land and water containing 1r.	Diana C. Parkinson and Maria Rebecca Parkinson.	Peter Thynne.

Given under our seal of office this thirtieth day of March in the year of our Lord one thousand nine hundred and three.

(L.S.)

H. A. ROBINSON.

COUNTY BOROUGH OF LONDONDERRY.

Provisional Order to enable the Corporation of Londonderry to put in force the Compulsory Clauses of the Lands Clauses Acts. *Londonderry.*

WHEREAS the mayor aldermen and burgesses of the county borough of Londonderry acting by the town council (in this Order referred to as "the corporation") as the sanitary authority for that county borough require to

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Provisional Orders Confirmation (No. 4) Act, 1903.

A.D. 1903. purchase and take the lands described in the schedule hereto for the purpose
Londonderry. of improving the supply of water for the said county borough :

Now therefore We the Local Government Board for Ireland in pursuance
of the powers given to Us by section 203 of the Public Health (Ireland)
Act 1878 and of any other power enabling Us in that behalf do hereby order
that from and after the date of the Act confirming this Order the following
provisions shall have effect namely :—

1. The corporation shall be empowered to put in force with reference
to the lands and premises described in the schedule hereto and for the
purpose aforesaid the powers of the Lands Clauses Acts as amended by
section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase
and taking of lands otherwise than by agreement or any of them.

2. For the purposes of this Order the expression “land” in the Lands
Clauses Acts shall include the lands and premises described in the schedule
hereto.

3. The costs and expenses of the corporation and of the Local Government
Board for Ireland incurred in respect of the application for preparation
making and confirmation of this Order shall be paid by the corporation as
part of their expenses under the Public Health (Ireland) Acts 1878 to 1896.

4. This Order may be cited as the Londonderry Order 1903.

SCHEDULE.

Nos. on Plan.	Description of Lands &c.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
COUNTY OF LONDONDERRY.				
PARISH OF TEMPLEMORE.				
1	Part of the Townland of Killea as follows :— Land moorland containing 2a. 1r.	The Honourable the Irish Society.	John Devenny	John Devenny.
2	Land part of field containing 1r. 12p.	Ditto	Ditto	Ditto.
1A 2A	Land bed and soil of streams containing 10p. and 3p. respectively.	Ditto	Ditto	Ditto.
3	Land part of field containing 1a. 1r. 6p.	Ditto	George Keys	George Keys.
4	Land part of field containing 35p.	Ditto	Ditto	Ditto.
5	Land part of field containing 1r. 25p.	Ditto	Ditto	Ditto.
6	Land part of lane containing 7p.	Ditto	Ditto	Ditto.

[3 Edw. 7.] *Local Government Board (Ireland)* [Ch. liv.]
Provisional Orders Confirmation (No. 4) Act, 1903.

A.D. 1903.
 Londonderry.

Nos. on Plan.	Description of Lands &c.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
COUNTY OF DONEGAL.				
PARISH OF KILLEA.				
	Part of the Townland of Altaghaderry as follows:—			
7	Land moorland containing 1r. 28p.	Colonel William McClintock.	John Steele - -	John Steele.
8	Land part of field containing 1r. 25p.	Ditto - -	Ditto - -	Ditto.
9	Land part of field containing 2r. 2p.	Ditto - -	Ditto - -	Ditto.
10	Land site of cottier house and premises containing 9p.	Ditto - -	Ditto - -	Thomas Curran.
11	Land part of garden containing 9p.	Ditto - -	Ditto - -	Ditto.
7A 8A 9A	Land bed and soil of stream containing 6p. 9p. 10p. 2p. respectively.	Ditto - -	Ditto - -	John Steele.
11A				
12	Land part of field containing 38p.	Ditto - -	Ditto - -	Ditto.
13	Land part of field containing 1r. 13p.	Ditto - -	Ditto - -	Ditto.
13A	Land bed and soil of stream containing 9p.	Ditto - -	Ditto - -	Ditto.
14	Land part of field containing 1r. 2p.	Ditto - -	Ditto - -	Ditto.
15	Land part of field containing 1r. 16p.	Ditto - -	James Speer - -	James Speer.
16	Land part of field containing 2r. 16p.	Ditto - -	Ditto - -	Ditto.
17	Land part of field containing 1r. 32p.	Ditto - -	Ditto - -	Ditto.
18	Land part of field containing 1r. 22p.	Ditto - -	Ditto - -	Ditto.
19	Land part of field containing 26p.	Ditto - -	Ditto - -	Ditto.
20	Land flax-dam containing 14p.	Ditto - -	Ditto - -	Ditto.
21	Land part of field containing 1r. 24p.	Ditto - -	John Steele - -	John Steele.
22	Land part of field containing 3r. 7p.	Ditto - -	James Speer - -	James Speer.
15A 16A	Land bed and soil of stream containing 10p. 2p. 2p. 6p. 10p. respectively.	Ditto - -	Ditto - -	Ditto.
17A 18A				
22A				

Given under our seal of office this sixth day of March in the year
 of Our Lord one thousand nine hundred and three.

(L.S.)

H. A. ROBINSON.

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Provisional Orders Confirmation (No. 4) Act, 1903.

A.D. 1903. RATHDRUM AND WICKLOW JOINT BURIAL BOARD.

*Rathdrum and
Wicklow.*

Provisional Order.

63 & 64 Vict.
c. cxc.

WHEREAS the rural district of Rathdrum and the urban district of Wicklow were by the Rathdrum and Wicklow Joint Burial Board Provisional Order 1900 (in this Order referred to as "the Order of 1900") confirmed by the Local Government Board (Ireland) Provisional Orders Confirmation (No. 3) Act 1900 (in this Order referred to as "the Act of 1900") formed into a united district for the purposes in the Order of 1900 mentioned:

And whereas an application has been made to the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") by the council of the rural district of Rathdrum (in this Order referred to as "the rural authority") for a provisional order altering the Act of 1900:

And whereas it appears to the Local Government Board expedient that the said Act should be altered as herein-after provided:

41 & 42 Vict.
c. 52.

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 214 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The Act of 1900 so far as it relates to the Order of 1900 shall be altered by the omission from Article 11 of the said Order (which provides for the proportion in which the expenses of the joint board are to be contributed) of the words "in the manner provided by section 235 of the Act" and by the substitution therefor of the words "in proportion to the rateable value of the " property in the Wicklow rural district electoral division and the urban " district of Wicklow respectively such value to be ascertained according to " the valuation list in force for the time being".

2. The costs and expenses of the rural authority and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the rural authority and the money required for that purpose shall be supplied by the County Council of Wicklow in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the rural authority.

3. This Order may be cited as the Rathdrum and Wicklow Joint Burial Board Provisional Order 1903.

Given under our seal of office this nineteenth day of February one thousand nine hundred and three.

(L.S.)

H. A. ROBINSON.

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